

Simplified Acquisition Procedures (SAP)

DETERMINATION MEMORANDUM FOR LIMITED SOURCES

ACQUISITIONS <\$350K

SOLICITATIONS MAY BE LIMITED TO ONE SOURCE OR BRAND NAME ONLY IF THE CONTRACTING OFFICER DETERMINES THAT ONLY ONE SOURCE OR BRAND NAME IS REASONABLY AVAILABLE. WHEN THE CUSTOMER DESCRIBES AN ITEM OR SERVICE, WHICH LIMITS THE AVAILABILITY TO ONE SOURCE OR BRAND NAME, THE DETERMINATION MUST EXPLAIN WHY THE ITEM OR SERVICE PROVIDER IS THE ONLY ONE OR ONLY BRAND THAT WILL MEET THE GOVERNMENT'S REQUIREMENT. STATEMENTS SUCH AS "ONLY KNOWN SOURCE" OR "ONLY SOURCE WHICH CAN MEET THE REQUIRED DELIVERY DATE" ARE INADEQUATE TO SUPPORT A SOLE SOURCE OR BRAND NAME PURCHASE.

****CUSTOMER COMPLETES BLOCKS 1-6b****

1. PURCHASE REQUEST NUMBER

2. ESTIMATED AMOUNT:

BRAND	NAME/CAGE CODE OF PROPOSED CONTRACTOR	Fund Type
NAME BUY		O&M
YES		OTHER
NO		

3. BRIEF DESCRIPTION OF SUPPLIES OR SERVICES REQUIRED AND THE INTENDED USE:

4. UNIQUE CHARACTERISTICS THAT LIMIT AVAILABILITY TO ONLY ONE SOURCE/
BRAND NAME, WITH THE REASON NO OTHER SUPPLIES OR SERVICES CAN BE USED:

5. MARKET RESEARCH:

6. PROVIDE A STATEMENT OF ACTIONS, IF ANY, THE GOVERNMENT MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE FUTURE ACQUISITIONS ARE REQUIRED:

6a. CUSTOMER NAME

6b. CUSTOMER SIGNATURE

AUTHORITY: (Completed by Contracting)

FAR 13.106-1(b)(1): For purchases not exceeding the simplified acquisition threshold (SAT), only one source reasonably available, urgency, exclusive licensing agreements, brand name, or industrial mobilization.

or

FAR 8.405-6(a)(1)(i)(B) and 8.405-6(b)(1) Brand Name

FAR 8.405-6(a)(1)(i)(A) Urgency

FAR 8.405-6(a)(1)(i)(B) Only One Source is Capable

FAR 8.405-6(a)(1)(i)(C) Logical Follow-on

or

FAR 16.505(b)(2)(i)(B) Only One Awardee is Capable

FAR 16.505(a)(4) Brand Name

FAR 16.505(b)(2)(i)(A) Urgency

FAR 16.505(b)(2)(i)(C) Logical Follow-on

7. I CERTIFY THAT THIS JUSTIFICATION IS ACCURATE AND COMPLETE TO THE BEST OF MY KNOWLEDGE AND BELIEF, AND THAT COMPLETING THIS PURCHASE AS A LIMITED SOLE SOURCE/BRAND NAME IS IN THE BEST INTEREST OF THE GOVERNMENT. ADDITIONALLY, I APPROVE THIS JUSTIFICATION TO LIMIT COMPETITION SUBJECT TO THE AVAILABILITY OF FUNDS AND PROVIDED THAT THE SERVICES OR SUPPLIES HEREIN DESCRIBED HAVE OTHERWISE BEEN AUTHORIZED FOR ACQUISITION.

7a. CONTRACTING OFFICER NAME

7b. CONTRACTING OFFICER SIGNATURE